



City of Cambridge

POR 2026-147
FIRST IN COUNCIL
August 3, 2026

COUNCILLOR NOLAN
COUNCILLOR AL-ZUBI

- WHEREAS: In February 2025 the City Council passed [POR 2025 #10](#) requesting a report on potential uses of [M.G.L. Ch. 40U](#), which allows municipalities to better collect fines for violation of ordinances regulating sanitation, housing, and snow and ice removal as a means to obtaining compliance with ordinances; and
- WHEREAS: In September 2025, the City Manager responded with [CMA 2025 #241](#), which outlined local options for Chapter 40U, including a list of ordinances and regulations within the scope of Ch. 40U, including Short-Term Rentals; and
- WHEREAS: Collection of fines for violations of local ordinance can be difficult for municipalities as many disputes can result in lengthy and difficult battles in state court for otherwise minor dollar amounts, and the Ch. 40U procedure works similarly to the process in place for hearings on parking citations which allows for appeals of citations outside the judicial system, allows penalties for late payments, and allows municipalities to impose sanctions for failure to pay fines by assessing additional penalties and interest, eventually allows municipalities to place a lien on a property based on the number of violations and/or dollar amount; and
- WHEREAS: One barrier to collecting fines for ordinance violations though the City's existing mechanism, G.L. c.40, §21D, is that online payments are not allowed, which is currently being addressed via state legislation by Amendment #157 of the currently pending [Economic Development Bill S.3178](#), which would allow any city or town to use an online payment mechanism as an alternative to payment by mail; and
- WHEREAS: Even if changes are made to the City's existing enforcement mechanism, G.L. c.40, §21D, Chapter 40U will provide an additional enforcement tool to the City, and will likely be particularly helpful for certain ordinance violations like violations of the Short-Term Rental Ordinance; and
- WHEREAS: In order to use and operationalize Chapter 40U, the City Council needs to vote to accept the statute and relevant ordinances and applicable regulations need to be updated to outline the relevant procedure, and City staff will need to work to operationalize the function, including to allow for online payments of all fines; now therefore be it
- ORDERED: That the City Council hereby accepts and authorizes the use of M.G. L. Ch. 40U, as a method for enforcement of certain ordinances; and be it further
- ORDERED: That the City Manager be and hereby is requested to work with relevant City

departments to provide a recommendation and outline procedures for implementing Ch. 40U for Short-Term Rental violations, and provide recommendations for any other ordinance violations to enforce with Chapter 40U; and be it further

ORDERED: That the City Manager be and hereby is requested to report back to the City Council in a timely manner.

A true copy;

ATTEST:-

A handwritten signature in cursive script, appearing to read "Paula M. Crane".

Paula M. Crane,
Interim City Clerk



City of Cambridge

That the City Council accept M.G.L. Ch. 40U as a method of collecting some fines.